

Unofficial 20: Document

APN: 303-57-979 1

RECORDING REQUESTED BY:
Clear Recon Corp

17:
Te

WHEN RECORDED MAIL TO:
Clear Recon Corp
3707 East Southern Avenue
Mesa, AZ 85206
Phone: 866-931-0036

NOTICE OF DEFAULT AND FORECLOSURE SALE

WHEREAS, on 2/10/2009, a certain Mortgage Deed of Trust was executed by PATSY SPARR-HARTLEY, WIFE OF RODNEY HARTLEY, AS HER SOLE AND SEPARATE PROPERTY as trustor in favor of BANK OF AMERICA, N.A., A NATIONAL BANKING ASSOCIATION as beneficiary, and was recorded on 2/18/2009, as Instrument No. 20090134650, in the Office of the Recorder of Maricopa County, Arizona; and

WHEREAS, the Mortgage Deed of Trust was insured by the United States Secretary of Housing and Urban Development (the Secretary) pursuant to the National Housing Act for the purpose of providing single family house; and

WHEREAS, the beneficial interest in the Mortgage Deed of Trust is now owned by the Secretary, pursuant to an assignment dated 1/24/2020, recorded on 1/24/2020, as instrument number 20200064357, in the office of Maricopa County, Arizona; and

WHEREAS, a default has been made in the covenants and conditions of the Mortgage Deed of Trust in that the payment due upon the death of the borrower(s) was not made and remains wholly unpaid as of the date of this notice, and no payment has been made sufficient to restore the loan to currency; and

WHEREAS, the entire amount delinquent as of 7/15/2026 is \$328,939.35; and

WHEREAS, by virtue of this default, the Secretary has declared the entire amount of the indebtedness secured by the Mortgage Deed of Trust to be immediately due and payable;

NOW THEREFORE, pursuant to powers vested in me by the Single Family Mortgage Foreclosure Act of 1994, 12 U.S.C. 3751 et seq., by 24 CFR part 27, subpart B, and by the Secretary's designation of me as Foreclosure Commissioner, **SEE ATTACHED** notice is hereby given that on **8/25/2026 at 12:00 PM** local time, all real and personal property at or used in connection with the following described premises ("Property") will be sold at public auction to the highest bidder:

Legal Description:

LOT 20, OF SUNBIRD UNIT SIX "B", ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA, RECORDED IN BOOK 401 OF MAPS, PAGE 45.

EXCEPT ALL WATER, OIL, GAS MINERALS AND RIGHTS THERETO. EXCEPT ALL WATER, OIL, GAS MINERALS AND RIGHTS THERETO.

Commonly known as: 6320 S CYPRESS POINT DR, CHANDLER AZ 85249

The sale will be held at: AT THE MAIN ENTRANCE OF THE SUPERIOR COURT BUILDING, MARICOPA COUNTY COURTHOUSE, 201 WEST JEFFERSON, PHOENIX, AZ 85003

Per the Secretary of Housing and Urban Development, the estimated opening bid will be **\$334,102.91**.

There will be no proration of taxes, rents or other income or liabilities, except that the purchaser will pay, at or before closing, his pro rata share of any real estate taxes that have been paid by the Secretary to the date of the foreclosure sale.

When making their bids, the winning bidders with the exception of the Secretary must submit a deposit totaling ten percent (10%) of the Secretary's estimated bid amount in the form of a certified check or cashier's check made payable to the undersigned Foreclosure Commissioner. Ten percent of the estimated bid amount for this sale is \$33,410.29. A deposit need not accompany each oral bid. If the successful bid is oral, a deposit of \$33,410.29 must be presented before the bidding is closed. The deposit is nonrefundable. The remainder of the purchase price must be delivered within 30 days of the sale or at such other time as the Secretary may determine for good cause shown, time being of the essence. This amount, like the bid deposits, must be delivered in the form of a certified or cashier's check. If the Secretary is the highest bidder, he need not pay the bid amount in cash. The successful bidder will pay all conveying fees, all real estate and other taxes that are due on or after the delivery date of the remainder of the payment and all other costs associated with the transfer of title. At the conclusion of the sale, the deposits of the unsuccessful bidders will be returned to them.

Unofficial Document

The Secretary may grant an extension of time within which to deliver the remainder of the payment. All extensions will be for 15 day increments for a fee of: \$500.00, paid in advance. The extension fee shall be in the form of a certified or cashiers check made payable to the Secretary of HUD. If the high bidder closes the sale prior to the expiration of any extension period, the unused portion of the extension fee shall be applied toward the amount due.

If the high bidder is unable to close the sale within the required period, or within any extensions of time granted by the Secretary, the high bidder may be required to forfeit the cash deposit or, at the election of the Foreclosure Commissioner after consultation with the HUD representative, will be liable to HUD for any costs incurred as a result of such failure. The Commissioner may, at the direction of the HUD representative, offer the property to the second highest bidder for an amount equal to the highest price offered by that bidder.

There is no right of redemption, or right of possession based upon a right of redemption, in the mortgagor or others subsequent to a foreclosure completed pursuant to the Act. Therefore, the Foreclosure Commissioner will issue a Deed to the purchaser(s) upon receipt of the entire purchase price in accordance with the terms of the sale as provided herein. HUD does not guarantee that the property will be vacant.

The scheduled foreclosure sale shall be cancelled or adjourned if it is established, by documented written application of the mortgagor to the Foreclosure Commissioner not less than 3 days before the date of sale, or otherwise, that the default or defaults upon which the foreclosure is based did not exist at the time of service of this notice of default and foreclosure sale, or all amounts due under the mortgage agreement are tendered to the Foreclosure Commissioner, in the form of a certified or cashier's check payable to the Secretary of HUD, before public auction of the property is completed.